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File No: EXP202311182

RESOLUTION FOR TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 17, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against OK MOBILITY ESPAÑA, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202311182

IMI Reference: A56ID 546007

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the German data protection authority of Baden-Wurttemberg on May 30, 2023. The complaint is directed against OK MOBILITY ESPAÑA, S.L. with NIF B57334609 (hereinafter, OK MOBILITY). The reasons for the complaint are as follows:

In March, they rented a car from this company. The complainant requested access to their personal data and asked for confirmation that the company had received the request, but received no response. Along with the complaint, the following is provided:

- Printout of an email sent on May 18, 2023, at 12:59 PM, from the complainant's email to rgpd@okgroup.es, with the subject "Data protection privacy and my personal data" (unofficial translation, the original in German), containing the following content: "Dear Sir or Madam, I would like information about my personal data that the company OK Mobility Group has stored. My name and address: A.A.A. [...] Please send me this data by postal mail within the next 14 days. Please confirm in advance by email that you have received, read, and understood this access request today, 18/05/2023. Best regards, A.A.A."

SECOND: Through the "Internal Market Information System" (hereinafter IMI System), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), whose objective is to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned complaint was transmitted on August 8, 2023, and was registered with the Spanish Agency for Data Protection (AEPD) on August 10, 2023. The transfer of this complaint to the AEPD was carried out in accordance with the provisions of Article 56 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (hereinafter, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the lead supervisory authority, given that OK MOBILITY has its main establishment in Spain.

The data processing carried out affects individuals in several Member States. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, it acts as an "interested supervisory authority," in addition to the German data protection authority of Baden-Wurttemberg, the authorities of France, Italy, and the German authority of Berlin. All of them under Article 4.22 of the GDPR, given that the individuals residing in the territory of these supervisory authorities are substantially affected or are likely to be substantially affected by the processing subject to this procedure.

THIRD: On September 26, 2023, in accordance with Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary

investigation actions to clarify the facts in question, by virtue of the functions assigned to supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

1. During the present actions, the following entities have been investigated:

OK MOBILITY ESPAÑA SLU with NIF B57334609 and address at AVENIDA ASIMA, 36 POLIGONO SON CASTELLO., PALMA DE MALLORCA (BALEARES), 07009 BALEARES, PALMA DE MALLORCA, is the entity with which the complainant signed the rental contract, and is a subsidiary of the OTHMAN KTIRI GROUP SL.

OTHMAN KTIRI RENT A CAR SOCIEDAD LIMITADA, with NIF: B57334757, Social Address: AV/ VIA ASIMA, 36 - EDIF. OK GROUP - POLIGONO GRAN. PALMA DE
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MALLORCA 07009 (BALEARES), appears as the data controller in the current privacy policy when the claimant requested the right of access. It is listed as Inactive due to Dissolution since January 18, 2023, in the Mercantile Registry.

OTHMAN KTIRI GROUP SL, with NIF: B57653321, located at COSTA CAN SANTACILIA, 9 2ª., PALMA DE MALLORCA (BALEARES), 07001. It is the parent company of the business group and the data controller as inferred from the response of the DPD.

2. On October 30, 2023, a request was sent to OK MOBILITY and its Data Protection Officer to provide information regarding its privacy policy, terms of use, and actions regarding the claimant's request.

3. The data protection policy, obtained from the website: <https://okmobility.com/> on October 31, 2023, recorded on that same date, states:

“1. WHO IS RESPONSIBLE FOR THE PROCESSING OF YOUR DATA? The responsible party will be the company OK Mobility España S.L.U - NIF: B57334757 Postal address: AVDA GRAN VÍA ASIMA, 36-A, Palma de Mallorca, Islas Baleares, Spain, Email: rgpd@okmobility.com.”

Consulted on the same day, the website: <https://monitoriza.axesor.es/>, shows that this NIF: B57334757 corresponds to OTHMAN KTIRI RENT A CAR SOCIEDAD LIMITADA, which is listed as Inactive due to Dissolution since January 18, 2023, in the OFFICIAL BULLETIN OF THE MERCANTILE REGISTRY dated 27/1/2023 Bulletin Number: 19 Reference: 45683 Pages: 4748, 4749.

Consulted on November 29, 2023, the website <https://monitoriza.axesor.es/>, shows that the company OK Mobility España S.L.U has the NIF B57334609.

Therefore, a discrepancy is noted between the name of the responsible party and its CIF published in the data protection policy of <https://okmobility.com/>.

Additionally, in its section 5, it states the following:

“5. HOW LONG WILL WE KEEP YOUR DATA? Personal data will be kept as long as the contractual relationship with the customer is maintained and subsequently, until you decide to communicate your deletion or until it is legally necessary, if you have given your consent. Once the contractual relationship has ended and if you decide to communicate your deletion, the data will be deleted in accordance with the provisions of data protection regulations, which implies its blocking, being available only at the request of Judges and Courts, the Public Prosecutor's Office, or the competent Public Administrations during the statute of limitations for actions that may arise.

In any case, if there are pending litigations at the end of the contractual relationship arising from the exercise of actions to contest the invoice or aimed at achieving their collection, the data may be retained during their processing, until a final resolution is reached – at which point they will be blocked and subsequently deleted – although they may only be used for evidentiary purposes.”

4. The email address to which the claimant requests access is rgpd@okgroup.es, different from the one listed on October 31, 2023, in the privacy policy (<https://okmobility.com/es/rent/privacy>) and in the general conditions (<https://okmobility.com/es/rent/general-conditions>) which is rgpd@okmobility.com. However, on November 30, 2023, the website was consulted:

<http://web.archive.org/web/20230529051159/https://okmobility.com/es/politica-privacidad>, and it was verified that in its privacy policy from April 5 to May 29, 2023, the email address for exercising the right

of access on May 18 of the same year was: rgpd@okgroup.es, which is the one used by the claimant.
5. On November 20, 2023, a response was received to the information request sent by this Agency to OK MOBILITY ESPAÑA SL (NIF B-57334609), from B.B.B., acting on behalf of the company OTHMAN KTIRI GROUP, S.L., with NIF B-57653321, in the capacity of Data Protection Officer, in which it states:

“1. We attach as Document No. 1, a copy of the privacy policy (Privacy Policy) and terms of use (Terms of Use) at the time the claimant requested the exercise of the right.

2. We attach as Document No. 2, a copy of the Contract or user license that the claimant had to accept to register for your service.”

It also claims:

“The right was not attended to in a timely manner because it was requested in German and the representation of the applicant was not duly accredited, which is why it was not processed properly and the aforementioned right was not attended to.

In light of what has occurred, the company has adopted a procedure for communicating the exercise of rights in member countries, with the translation of the same, to ensure that they are properly attended to.”

The contract with the claimant, attached to the response, is drafted in German.

6. The CIF B57653321 represented by the DPD B.B.B., on November 29, 2023, is confirmed to belong to OTHMAN KTIRI GROUP SL, the parent company that includes OK MOBILITY.

7. On November 29, 2023, it is confirmed that the privacy policy at the time of the contract signed by the claimant was available in German on the OK MOBILITY website.

8. On December 21, 2023, as recorded in the diligence dated April 18, 2024, the German data protection authority of Baden-Wurttemberg sent the

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Documents requested by the AEPD on October 31, 2023: contract drafted in German and English and general conditions, drafted in German and signed by the claimant, as well as the unofficial translation into English of the most relevant parts of the general conditions.

It is noted that the claimant signed a contract with OK MOBILITY ESPAÑA SLU, CIF B57334609, located at Gran Vía Asima, 36 07009 Palma de Mallorca - Spain, to rent a car from 03/15/2023 to 03/24/2023.

In the aforementioned general conditions in German, the email address for exercising rights related to personal data is mentioned: rgpd@okmobility.es.

9. According to the report obtained from the AXESOR tool on November 29, 2023, the entity OK MOBILITY ESPAÑA SLU, with NIF B57334609, is a subsidiary company established in 2005, with a turnover of 271,628,899 euros in 2022 and 248 employees.

10. The data protection policy, obtained from the website: <https://okmobility.com/> on April 18, 2024, recorded on that same date, includes, among other information, the following:

“INTRODUCTION

We present to you the PRIVACY NOTICE of the companies belonging to OK MOBILITY GROUP. If you want more detailed information about the aforementioned entities, you can click on the following link Data Controllers and contact details by country where we will provide you with a complete list of these companies and their contact details.

It is important that you read this privacy notice carefully so that you can understand and know what we do with your personal data in our company. You should keep in mind that the services we provide may require us to share information with our franchisees and/or independent licensees. This Privacy Notice does not apply to those OK MOBILITY GROUP offices owned and/or operated by a franchisee and/or independent licensee that are not owned or controlled by OK MOBILITY GROUP or by an affiliate or subsidiary of it.

If you want to know which independent establishments we are currently referring to, click here. In any

case, if you have further questions or concerns regarding the use of your personal information by our franchisees and independent licensees, please contact us by sending an email to juridico@okmobility.com.

OK MOBILITY GROUP may modify parts of this Privacy Notice over time, so we ask that you check its content periodically. In the event that we make a modification that significantly affects your rights or, to the extent that we are authorized to do so, make significant changes regarding how we use your personal information, we will notify you by prominently posting it on our websites, by email, and/or by postal mail before the change takes effect."

"YOUR PRIVACY RIGHTS

(...) If you wish to exercise any of these rights or if you have any questions about how we process your personal information, please contact our Data Protection Officer at the address listed in the section Data Controllers and contact details by country. You are also free to file a complaint with the supervisory authority if you believe that we are processing your personal information contrary to the applicable law."

In this regard, it is verified that in this privacy policy the link to the "Data Controllers and contact details by country" referenced in the first section does not work, nor are there links to any other document or webpage.

Regarding the retention period of personal data, it states:

"Data retention period

Personal data will be retained as long as the contractual relationship with the client is maintained and thereafter, until you decide to communicate its deletion or until it is legally necessary, if you have given your consent. Once the contractual relationship has ended and if you decide to communicate its deletion, the data will be deleted in accordance with the provisions of data protection regulations, which implies its blocking, being available only at the request of Judges and Courts, the Public Prosecutor's Office, or the competent Public Administrations during the statute of limitations for actions that may arise.

In any case, if there are pending litigations arising from the exercise of actions to contest the invoice or aimed at achieving their collection at the end of the contractual relationship, the data may be retained during the processing of the same, as long as a final resolution has not been reached - at which point they will be blocked and subsequently deleted - although they may only be used for evidentiary purposes."

And regarding the way to exercise data protection rights:

"Data protection and your rights

(...) You can exercise your rights by postal mail to the address: OTHMAN KTIRI GROUP SL, with registered office at AVDA GRAN VÍA ASIMA, 36-A, 07009 Palma de Mallorca, Spain, or by email to rgpd@okmobility.com indicating the right to exercise and attaching the required documentation. On the AEPD website, you can find a series of templates that will help you exercise your rights. For all information regarding Data Protection related to OK MOBILITY and the companies that make up this group, you can contact: DATA PROTECTION"

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In this regard, it is verified that there are no links to any other document or webpage in this privacy policy.

11. The general contracting conditions of OK MOBILITY, obtained from the website:

<https://okmobility.com/es/rent/general-conditions#general> on October 31, 2023, and processed on April 18, 2024, include, among other information, the following:

"The affected parties may exercise their rights of access, rectification, limitation, deletion, and opposition by means of a written request accompanied by a copy of their ID and addressed to the previously indicated address or to the email: rgpd@okmobility.com. The signing of the Contract by the Tenant will be considered as acceptance of the General and Specific Conditions specified in the

contract.”

12. On June 14, 2024, a response was received to the information request sent by this Agency to OK MOBILITY ESPAÑA SL (NIF B-57334609), in which OK MOBILITY indicates:

“I. By virtue of the above-mentioned Request, OK MOBILITY has been required to provide the following information: ‘Report on the effective period for the retention of personal data of customers and users of the website and its accreditation.’

II. The OK MOBILITY website has fields where users can provide their personal data if they wish to formalize a reservation, receive a quote, be part of the loyalty program Club OK, or provide their consent to receive commercial communications.

III. The retention periods for the personal data of website users and customers will depend on the purpose of the processing for which such data was collected, with the maximum retention period for personal data collected on the website being 5 years.

Attached as Annex is a certificate accrediting the retention periods issued by the Data Protection Officer of the Company.”

In this Annex document, signed on June 12, 2024, it is stated:

“B.B.B., of legal age, holder of ID number ***NIF.1, acting as Data Protection Officer of the company OK MOBILITY ESPAÑA, S.L., and at the request of the aforementioned entity

CERTIFIES:

I. The OK MOBILITY website has different fields where users can provide their personal data to formalize a reservation, receive a quote, be part of the loyalty program Club OK, or provide their consent to receive commercial communications.

II. The retention periods for the personal data of website users and customers will depend on the purpose of the processing for which such data was collected, with the maximum retention period for personal data collected on the website being 5 years.”

FIFTH: On September 12, 2024, the Director of the AEPD adopted a draft agreement to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on September 13, 2024, the aforementioned draft was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to submit relevant and justified objections. The processing period of the proceedings was automatically suspended during these four weeks, in accordance with the provisions of Article 64 of the LOPDGDD.

Within the time frame for this purpose, the interested supervisory authorities did not submit relevant and justified objections in this regard, so it was considered that all authorities agreed with the said draft decision and were bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Preliminary Issues

In this case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is noted that there is a processing of personal data, as OK MOBILITY collects and retains, among others, the following personal data of natural persons: name and surname, phone number, and address, among other treatments.

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OK MOBILITY carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

III

Unfulfilled obligation. Retention period

Article 5 “Principles relating to processing” states:

“1. Personal data shall be:

(...)

e) maintained in a manner that allows the identification of data subjects for no longer than is necessary for the purposes of processing personal data; personal data may be retained for longer periods provided that they are processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89(1), without prejudice to the application of appropriate technical and organizational measures imposed by this Regulation to protect the rights and freedoms of the data subject (‘storage limitation’); (...)”

In this case, the data protection policy, obtained from the website: <https://okmobility.com/> on October 31, 2023, recorded, among other information:

“5. HOW LONG WILL WE KEEP YOUR DATA? Personal data will be retained as long as the contractual relationship with the customer is maintained and thereafter, until you decide to communicate your deletion to us or until legally necessary, if you have given your consent. Once the contractual relationship has ended and if you decide to communicate your deletion to us, the data will be deleted in accordance with the provisions of data protection regulations, which implies its blocking, being available only at the request of Judges and Courts, the Public Prosecutor's Office, or the competent Public Administrations during the statute of limitations for actions that may arise.

In any case, if there are pending litigations arising from the exercise of actions to challenge the invoice or aimed at achieving its collection at the end of the contractual relationship, the data may be retained during the processing of the same, as long as no final resolution has been reached – at which point it will be blocked and subsequently deleted – although it may only be used for evidentiary purposes.”

For its part, the data protection policy, obtained from the website: <https://okmobility.com/> on April 18, 2024, recorded, among other information, the following:

“Data retention period

Personal data will be retained as long as the contractual relationship with the customer is maintained and thereafter, until you decide to communicate your deletion to us or until legally necessary, if you have given your consent. Once the contractual relationship has ended and if you decide to communicate your deletion to us, the data will be deleted in accordance with the provisions of data protection regulations, which implies its blocking, being available only at the request of Judges and Courts, the Public Prosecutor's Office, or the competent Public Administrations during the statute of limitations for actions that may arise.

In any case, if there are pending litigations arising from the exercise of actions to challenge the invoice or aimed at achieving its collection at the end of the contractual relationship, the data may be retained during the processing of the same, as long as no final resolution has been reached – at which point it will be blocked and subsequently deleted – although it may only be used for evidentiary purposes.”

On June 14, 2024, a response was received to the information request sent by this Agency to OK MOBILITY ESPAÑA SL (NIF B-57334609), in which OK MOBILITY indicated:

“I. Pursuant to the above Request, OK MOBILITY has been required to provide the following information: ‘Report on the effective retention period of personal data of customers and users of the website and its accreditation.’

II. The OK MOBILITY website has fields where users can provide their personal data if they wish to formalize a reservation, receive a quote, be part of the loyalty program Club OK, or provide their consent to receive commercial communications.

III. The retention periods for the personal data of web users and customers will depend on the purpose of the processing for which such data was collected, with the maximum retention period for personal data collected on the website being 5 years.

Attached as Annex is a certificate accrediting the retention periods issued by the Data Protection Officer of the Company.”

In this Annex document, signed on June 12, 2024, it was stated:

“B.B.B., of legal age, holder of DNI no. ***NIF.1, acting as Data Protection Officer of the company OK MOBILITY ESPAÑA, S.L., and at the request of the aforementioned entity

CERTIFIES:

I. The OK MOBILITY website has different fields where users can provide their personal data to formalize a reservation, receive a quote, be part of the loyalty program Club OK, or provide their consent to receive commercial communications.

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II. The retention periods for the personal data of web users and clients will depend on the purpose of the processing for which such data was collected, with the maximum retention period for personal data collected on the website being 5 years.

In this case, OK MOBILITY states on its website that personal data will be retained as long as there is a contractual relationship and, thereafter, until the interested party requests the deletion of their data or it is legally necessary. This deletion will imply the blocking of the data.

In response to a request from this Agency, OK MOBILITY has not detailed the retention period of personal data based on its purpose, but makes a generic reference that the maximum retention period for personal data will be 5 years, without further information in this regard.

Therefore, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement attributable to OK MOBILITY for violation of Article 5.1.e) of the GDPR.

IV

Typification and qualification of the infringement of Article 5 of the GDPR

The known facts could constitute an infringement attributable to OK MOBILITY, classified under Article 83.5 of the GDPR, under the heading "General conditions for the imposition of administrative fines," which states:

“5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the limitation period for infringements, the infringement attributed prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679; (...)"

V

Proposal for sanction for the infringement of Article 5 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to grade the sanction to be imposed according to the following criteria established in Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or

purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered (paragraph a): for retaining personal data obtained through the website for longer than strictly necessary for the fulfillment of the pursued purposes, up to the present time.

It is also considered appropriate to grade the sanction to be imposed according to the following criteria established in paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

- The link of the infringer's activity with the performance of personal data processing (paragraph b): the activity of OK MOBILITY, a company dedicated to car rental, requires continuous processing of personal data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 5 of the GDPR, allows for an initial administrative fine of 50,000 € (FIFTY THOUSAND EUROS).

VI

Unfulfilled obligation. Information that must be provided when personal data is obtained from the interested party

Article 13 of the GDPR "Information that must be provided when personal data is obtained from the interested party" states:

"1. When personal data relating to an interested party is obtained from that party, the data controller shall provide all the information indicated below at the time the data is obtained:

a) the identity and contact details of the controller and, where applicable, of its representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second subparagraph,

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reference to adequate or appropriate guarantees and the means to obtain a copy of these or the place where they have been made available. (...)"

In the present case, it has been established that on October 31, 2023, the privacy policy of the website <https://okmobility.com> provided the following information in its section 1 "WHO IS RESPONSIBLE FOR THE PROCESSING OF YOUR DATA?":

"The responsible party will be the company OK Mobility España S.L.U - NIF: B57334757 Postal address: AVDA GRAN VÍA ASIMA, 36-A, Palma de Mallorca, Balearic Islands, Spain, Email: rgpd@okmobility.com"

However, the company OK Mobility España SLU has the following NIF: B57334609. On the other hand, the NIF that appeared on the website, B57334745, has been verified to belong to the company OTHMAN KTIRI RENT A CAR SL, a defunct company.

Therefore, in accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to OK MOBILITY, for violation of Article 13 of the GDPR.

VII

Classification and qualification of the infringement of Article 13 of the GDPR

The known facts could constitute an infringement, attributable to OK MOBILITY, classified under

Article 83.5 of the GDPR, under the heading “General conditions for the imposition of administrative fines” states:

“5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

(...) b) the rights of the data subjects under Articles 12 to 22; (...)”

For the purposes of the statute of limitations for infringements, the imputed infringement prescribes after one year, in accordance with Article 74 of the LOPDGDD, which qualifies the following conduct as minor:

“a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679. (...)”

VIII

Proposal for a sanction for the infringement of Article 13 of the GDPR

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For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established by Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered (paragraph a): for providing in the privacy policy published on the website okmobility.com, a NIF that did not correspond to that of OK MOBILITY ESPAÑA SL, but rather that of a defunct company.

Furthermore, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established by paragraph 2 of Article 76 “Sanctions and corrective measures” of the LOPDGDD:

- The link of the infringer's activity with the processing of personal data (paragraph b): the activity of OK MOBILITY, a car rental company, requires continuous processing of personal data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 13 of the GDPR, allows for an initial administrative fine of 30,000 € (THIRTY THOUSAND EUROS).

IX

Obligation not fulfilled. Right of access of the data subject

Article 15 “Right of access of the data subject” states:

“1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning him or her are being processed and, where that is the case, the right of access to the personal data and to the following information:

a) the purposes of the processing;

b) the categories of personal data concerned;

c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;

d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;

e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;

f) the right to lodge a complaint with a supervisory authority;

g) when the personal data have not been obtained from the data subject, any available information as to their source;

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h) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject.

2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject submits the request by electronic means, and unless they request that it be provided in another way, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

In this case, the claimant sent an email on May 18, 2023, to the address rgpd@okgroup.es, which was listed in the privacy policy of the website <https://okmobility.com/>. However, no response was received. In response to a request from this Agency, the DPO of the company OTHMAN KTIRI GROUP SL stated that the right was not addressed because it was requested in German and “the representation of the applicant was not duly accredited.”

Article 12 “Transparency of information, communication, and modalities for exercising the rights of the data subject” of the GDPR states that:

“(…) 3. The data controller shall provide the data subject with information regarding their actions based on a request under Articles 15 to 22, without undue delay and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided otherwise.

4. If the data controller does not act on the request of the data subject, they shall inform the data subject without undue delay, and at the latest within one month of receiving the request, of the reasons for not acting and of the possibility of lodging a complaint with a supervisory authority and of seeking judicial remedies. (…)”

In this case, the fact that a request was submitted in German cannot be understood as an impediment to the exercise of such a right, given that the contract itself was signed by the claimant in German and that the company provides its services to data subjects from that country.

Regarding the alleged lack of representation, if OK MOBILITY needed to verify the identity of the claimant, it should have requested such information.

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Y, in any case, it should have informed the interested party about the reasons for its inaction and the possibility of filing a complaint with the supervisory authority and exercising legal actions.

Therefore, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the known facts could constitute an infringement, attributable to OK MOBILITY, for violation of Article

15 of the GDPR.

X

Classification and qualification of the infringement of Article 15 of the GDPR

The known facts could constitute an infringement, attributable to OK MOBILITY, classified under Article 83.5 of the GDPR, under the heading "General conditions for the imposition of administrative fines" which states:

"5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of the data subjects under Articles 12 to 22; (...)"

For the purposes of the statute of limitations for infringements, the imputed infringement prescribes after three years, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

(...) k) The hindrance or obstruction or the repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679. (...)"

XI

Proposal for sanction for the infringement of Article 15 of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment in the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to scale the sanction to be imposed according to the following criteria established by Article 83.2 of the GDPR:

- The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected data subjects and the level of damage and harm they have suffered (paragraph a): for failing to respond to the request for access to the personal data of the complaining party dated May 18, 2023.

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It is also considered appropriate to scale the sanction to be imposed according to the following criteria established by paragraph 2 of Article 76 "Sanctions and corrective measures" of the LOPDGDD:

- The link of the infringer's activity with the processing of personal data (paragraph b): the activity of OK MOBILITY requires continuous processing of personal data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 15 of the GDPR, allows for an initial administrative fine of 20,000 € (TWENTY THOUSAND EUROS).

XII

Adoption of measures

If the infringement is confirmed, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specified manner and within a specified time frame...", in the resolution that is adopted, OK MOBILITY may be required to demonstrate to this Agency the adoption of the following measures, without prejudice to others that may arise from the instruction of the procedure:

- Within ONE MONTH, to demonstrate that it has provided due access to the personal data of the complaining party.

- Within THREE MONTHS, to demonstrate that it has adjusted the retention periods of the personal data obtained through its website to the provisions of Article 51.e) of the GDPR.

The imposition of these measures is compatible with the imposition of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the resolution that concludes this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may motivate the opening of a further sanctioning administrative procedure.

It is also reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts from the obligation to adopt the necessary measures to cease the conduct or to correct the effects of the infringement committed and to demonstrate to this AEPD compliance with that obligation.

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Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against OK MOBILITY ESPAÑA, S.L., with NIF B57334609, for the alleged infringement of Article 5.1.e) of the GDPR, Article 13 of the GDPR, and Article 15 of the GDPR, all classified under Article 83.5 of the GDPR.

SECOND: TO APPOINT C.C.C. as the instructor and D.D.D. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure and the documentation from the IMI regarding the draft decision.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, without prejudice to what results from the instruction:

- For the alleged infringement of Article 5.1.e) of the GDPR, an administrative fine of 20,000.00 euros.
- For the alleged infringement of Article 13 of the GDPR, an administrative fine of 30,000.00 euros.
- For the alleged infringement of Article 15 of the GDPR, an administrative fine of 50,000.00 euros.

The sum of these amounts totals 100,000 euros.

FIFTH: TO NOTIFY this agreement to OK MOBILITY ESPAÑA, S.L., with NIF B57334609, granting a hearing period of ten working days for them to submit allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number indicated in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 80,000.00 euros, resolving the procedure with the imposition of this sanction.

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Similarly, they may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 80,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one that corresponds to

the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 60,000.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any administrative action or appeal against the sanction.

For these purposes, in case of opting for any of them, they must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction indicating which of the two reductions they are opting for or if it is for both.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (80,000.00 euros or 60,000.00 euros), they must do so by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are adhering.

Additionally, they must send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any administrative action or appeal against the sanction to continue with the procedure in accordance with the amount deposited. Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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SECOND: On November 18, 2024, the respondent has proceeded to pay the fine in the amount of 60,000 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations regarding the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the fine and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

FOURTH: In the aforementioned Initiation Agreement transcribed earlier, it was stated that if the infringement were confirmed, measures could be imposed on the responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the cited Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having received a written communication from OK MOBILITY ESPAÑA, S.L. informing that it has adopted the necessary measures to prevent the reoccurrence of the facts that led to the infringement, this Agency acknowledges receipt of the same, without this declaration implying any pronouncement on the regularity or legality of the measures adopted.

It is warned about the provisions of Article 5.2 of the GDPR, which establishes the principle of proactive responsibility when it states that "The controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it." This principle refers to the obligation that falls on the controller not only to design, implement, and observe the appropriate legal, technical, and organizational measures to ensure that data processing is in accordance with the regulations but also

to remain actively vigilant throughout the entire lifecycle of the processing to ensure that such compliance is correct, being additionally able to demonstrate it.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or waiver of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this paragraph may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202311182, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to OK MOBILITY ESPAÑA, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months starting from the day following the notification of this act, as stipulated in Article 46.1 of the aforementioned Law.

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